

H B Ranganath vs Kiran D N on 5 August, 2024

KABC020322632019

IN THE COURT OF ADDL. CHIEF JUDICIAL
MAGISTRATE, BENGALURU CITY.
(SCCH-6)

Present: Smt. Chetana S.F.

B.A., L.L.B.,
IV Addl., Small Cause Judge & ACJM,
Court of Small Causes,
Bengaluru.

CC. No. 7326/2019

DATED THIS THE 5TH DAY OF AUGUST, 2024

COMPLAINANT/S

H.B.Ranganath,
S/o Bettaiah,
Aged about 48 years,
Residing at No.22/25,
II Floor, 3rd main, 5th cross,
ear Saraki Tank,
Puttenahalli main road,
Bengaluru-560 078.

(By Sri.K.E.Jagadeesha – Advocate)

–Vs.–

ACCUSED

Kiran D.N.,
S/o K.Nanjappa,
Aged about years,,
No.2A, 21, Nandi Garden,
Avalahalli, Anjannapura Post,
Bengaluru-560 062.

Also at
Kiran D.N.,
S/o K.Nanjappa

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No.79, 3rd Cross Road,
Chikkaswamy Layout
Jaraganahalli
J.P. Nagar, 6th phase
Bengaluru-560 078

Also at
Kiran D.N.,
S/o K.Nanjappa

K.Gangamma & K.Najappa Farm House,
R/at G.Dodderi Village,
Turahalli post, Mayasandra Hobli,
Thuruvekere Taluk,
Tumkuru District-572 142.

(Smt. R.S.Premalatha- Advocate)

-: J U D G M E N T :-

This is a complaint filed by the complainant U/Sec. 200 of Cr.P.C. for the offense punishable under Sec.138 of N.I. Act as against the accused praying to punish the accused for the said offence.

2. The case of the complainant is that, he entered into agreement to sell with accused for the purpose of purchase of immovable property situated at G.Dodderi village, belonging to accused. The accused has not complied the terms of agreement to sell and said agreement to sell was canceled and towards repayment of advance sale consideration amount,
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accused has issued cheque bearing No.172138 dt.25-10-2019 drawn on Karnataka Bank Ltd., Jayanagar, 9th block branch, Bengaluru for Rs.15 lacs full and final settlement drawn in favour of complainant. The complainant presented the said cheque to the bank, but the said cheque dishonoured with a shara 'Payment stopped by drawer on 28-10-2019'. The complainant issued legal notice dated 22-11-2019 through RPAD to the accused, the said notice served on 3-12-2019 to the accused and had issued untenable reply on 10-12-2019 and accused has neither paid the amount covered under the

cheque nor reply for the same. Accordingly, the accused has committed an offence punishable under Sec.138 of N.I Act. Hence, this complaint.

3. After recording the sworn statement of the complainant and also verifying the documents, cognizance was taken against the accused for the offence punishable under Sec. 138 of N.I. Act. The accused on receiving the summons appeared before this Court through his counsel and he was enlarged on bail and his plea was recorded. The accused pleaded not guilty and claimed to be tried.

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Hence,
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the case was posted for evidence of the complainant.

4. The complainant got examined himself as PW.1 and got marked 23 documents as Exs.P1 to 20. one Nagaraja Udupa got examined as PW-2 and got marked Ex-P21 to 23. Thereafter, the case was posted for recording the statement of accused under Sec.313 of Cr.P.C. In the statement U/s. 313 Cr.P.C., the accused has denied all the incriminating evidence appearing against him and claimed to be tried. The accused got examined himself as DW-1 and got marked Ex-D1 to Ex-D23.

5. Heard the arguments of both side and Perused the records.

6. The following points arise for my consideration:

1.

Whether the complainant proves that the cheque bearing No.172138 dt.25-10-2019 drawn on Karnataka Bank Ltd., Jayanagar, 9th block branch, Bengaluru for Rs.15 lakhs issued by the accused have been dishonored on the ground of 'Payment stopped by drawer' and even after receiving the intimation regarding the dishonor of cheques failed to pay the cheques amount within the stipulated period and thereby the accused has committed an offence punishable under Sec.138 of N.I. Act?

2. What order?

7. My findings on the above points are as under

Point No.1: In the Negative;

Point No.2: As per final order for the following:

REASONS:

8. POINT NO.1: In view of the present legal position as held by our Hon'ble High Court as well as Apex Court of India in a catena of decisions as well as relevant provisions of the Act, this court has to see whether the complainant has complied all the requirements as contained in Sec.138 of NI Act so as to bring home the guilt of the accused for the alleged offence. If so, whether the accused is able to rebut the legal presumption available to the complainant under Sec.139 of the Act by adducing probable defense or not. However, it is held by the full bench of our Apex Court in the case of Rangappa Vs. Mohan reported in 2010 (1) DCR 706 that;

"The Statutory presumption mandated by sec.139 of the Act, does indeed include the existence of a legally enforceable debt or liability. However, the presumption U/S 139 of the Act is in the nature of a rebuttable presumption and it is open for the accused to raise a defence wherein the existence of a legally enforceable debt or liability can be contested".

9. Therefore, in view of the above decision, once the cheque is admitted, the statutory presumption would automatically fall in favour of the complainant that, the alleged cheque was issued for discharge of an existing legally enforceable debt or liability against the accused and the burden will shift on to the accused to rebut the same.

INGREDIENTS OF OFFENCE AND DISCUSSION:

10. Before dwelling into the facts of the present case, it would be appropriate to discuss the legal standards required to be met by both sides. In order to establish the offence under Section 138 of NI Act, the prosecution must fulfill all the essential ingredients of the offence. Perusal of the bare provision reveals the following necessary ingredients of the offence: First Ingredient: The cheques were drawn by a person on an account maintained by him for payment of money and the same is presented for payment within a period of 3 months from the date on which it is drawn or within the period of its validity;

Second Ingredient: The cheques were drawn by the drawer for discharge of any legally enforceable debt or other liability;

Third Ingredient: The cheques were returned unpaid by the bank due to either insufficiency of funds in the account to honour the cheque or that it exceeds the amount arranged to be paid from that account on an agreement made with that bank;

Fourth Ingredient: A demand of the said amount has been made by the payee or holder in due course of the cheque by a notice in writing given to the drawer within thirty days of the receipt of information of the dishonour of cheque from the bank;

Fifth Ingredient: The drawer fails to make payment of the said amount of money within fifteen days from the date of receipt of notice.

APPRECIATION OF EVIDENCE□

11. The accused can only be held guilty of the offence under Section 138 NI Act if the above□ mentioned ingredients are proved by the complainant co□extensively. Additionally, the conditions stipulated under Section 142 NI Act have to be fulfilled. Notably, there is no dispute at bar about the proof of only first, third, and fifth ingredient. The complainant had proved the original cheque vide Ex.P1 which the accused person had not disputed as being drawn on the account of the accused. It was not disputed that the cheque in question was presented within its validity period. The cheque in question was returned unpaid vide return memo dated 28□10□2019 vide Ex.P2 due to the reason, "Payment stopped by drawer". The complainant had proved the service of legal demand notice dated 22□1□2019 vide Ex.P3 by bringing on record the postal receipts vide Ex.P4 to 6 and postal acknowledgment vide Ex.P7. However, the accused person has not denied the receipt of the legal notice. Thus, there is a dispute with regard to the fifth ingredient to the offence. As such, the first, third, fourth and fifth ingredient of the offence under section 138 of the NI Act stands proved.

12. As far as the proof of second ingredient is concerned, the complainant has to prove that the cheque in question was drawn by the drawer for discharging a legally enforceable debtor any liability. In the present case, the issuance of the cheque in question is not denied. As per the scheme of the NI Act, once the accused admits signature on the cheque in question, certain presumption are drawn, which result in shifting of onus. Section 118(a) of the NI Act lays down the presumption that every negotiable instrument was made or drawn for consideration. Another presumption is enumerated in Section 139 of NI Act. The provision lays down the presumption that the holder of the cheque received it for the discharge, in whole or part, of any debt or other liability.

13. The combined effect of these two provisions is a presumption that the cheque is drawn for consideration and given by the accused for the discharge of debt or other liability. Both the sections use the expression "shall", which makes it imperative for the court to raise the presumptions once the foundational facts required for the same are proved.

14. Further, it has been held by a three Judge bench of the Hon'ble Apex Court in the case of Rangappa vs. Sri Mohan (2010) 11 SCC 441 that the presumption contemplated under Section 139 of NI Act includes the presumption of existence of a legally enforceable debt. Once the presumption is raised, it is for the accused to rebut the same by establishing a probable defence. However the presumptions raised under Section 118(b) and Section 139 NI Act are rebuttable presumptions. A reverse onus is cast on the accused, who has to establish a probable defence on the standard of preponderance of probabilities to prove that either there was no legally enforceable debt or other liability. In this case, the arguments raised by the Ld. counsel for the accused to rebut the presumption are discussed below:

15. According to the complainant, he entered into agreement to sell with accused for the purpose of purchase of immovable property situated at G.Dodderi village, belonging to accused. The accused has not complied the terms of agreement to sell and said agreement to sell was canceled and towards repayment of advance sale consideration amount, accused has issued cheque bearing No.172138 dt.25.10.2019 drawn on Karnataka Bank Ltd., Jayanagar, 9th Block Branch, Bengaluru for Rs.15,00,000/- full and final settlement drawn in favour of complainant assuring that the same would be honored on its presentation. Thus, according to the complainant, he has paid Rs.15,00,000/- in respect of agreement of sell. As such, the said agreement of sell and the cancellation of the said agreement documents are vital documents.

16. On the other hand, accused has denied the said agreement of sell and contended that he has never entered into any sale agreement and he never intended to purchase any property. The learned counsel for the accused cross examined PW.1 at length with regard to the said agreement wherein PW.1 deposed that on 25.04.2018, father of the accused has executed said agreement in favour of the PW.1 and accused has signed to the said agreement as a witness. Further PW.1 pleaded his ignorance with regard to the measurement of the site, survey number of the site and the site number also. Further PW.1 himself deposed that the said agreement was made in April 2018 and even he did not know the boundaries of the said site. Further, PW.1 stated he has not seen the revenue documents relating to the property and even he has not taken any legal opinion with regard to the purchase of the said property. Even PW.1 do not know what was the market value of the said property and even he has not made any enquiry with regard to the property. PW.1 has stated that he has agreed to purchase the said property for Rs.85,00,000/- and has given the advance sale consideration amount of Rs.15,00,000/- to the Nanjappa father of the accused. Further, PW.1 admitted that he has not produced the said agreement and volunteers that the said agreement has been taken by the accused and has given the cheque in question.

17. Thus, from the above said evidence of PW.1, it creates a doubt about the any transaction in respect of the land as ordinarily no prudent man would enter into any agreement to sell that too by giving the sale consideration amount of Rs.15,00,000/- without making any enquiry with regard to the property and also without knowing about the survey number, boundaries and measurement of the property and also without verifying any revenue documents.

18. Apart from this, according to PW.1 himself the agreement was entered into between the father of the accused and himself and PW.1 himself admitted that father of accused has three children

including accused. When such is the fact what prevented PW.1 to take the cheque from father of the accused or from three sons. There is no explanation given by the PW.1 in this regard. When there is an agreement between father of the accused and PW.1, why accused himself only has issued Ex.P.1 cheque. Even PW.1 was aware of the fact that accused was not the owner of the property and he has made the agreement with father of the accused.

19. Further, PW.1 has taken the contention that he has lent Rs.5,00,000/- each on two times to the accused and Rs.5,00,000/- to the father of the accused Nanjappa and he has given the amount of Rs.10,00,000/- in presence of one Prakash. However contrary to this PW.1 take the contention that , he has taken the property on lease and thereafter, he has given the agreement amount. Thereafter, he has cancelled the said agreement as the property was not in the name of the accused for not complying the terms of the agreement.

20. Further PW.1 deposed that he has made agreement with Nanjappa and thereafter he cancelled the said agreement and received cheque from the accused. Further PW.1 himself admitted that agreement was prepared in four originals and all the four agreement copies were the originals and they were with him and he has given the xerox copy to the Nanjappa. but not produced any single copies of the same and contended that o he has returned the said original agreement to the accused when he received the cheque.

21. It is pertinent to note here that though PW.1 contended that there was four originals of the agreement and returned the same to the accused, atleast PW.1 would have retained one of the copies with him till the cheque has been encashed. PW.1 has not produced atleast one of the copy of the said agreement . The non-production of the said agreement is fatal to the case of the complainant as complainant is wholly relying on the said agreement for passing of the consideration of Rs.15,00,000/- The non-production of the copy of the agreement creates serious doubt about the case of the complainant.

22. Apart from this though PW.1 contended that he has given the amount of Rs.10,00,000/- to the accused in the presence of one Prakash but, PW.1 has not examined the said Prakash for the reasons best known to him.

23. Apart from this, PW.1 in his cross-examination admitted that he has given Rs.15,00,000/- to Nanjappa father of accused in cash by withdrawing the said amount from his Kaveri Gramina Bank and he did not remember his bank account number and he did not remember on which date he has given the amount to the accused. Thus, there is a contradiction in the evidence of the PW.1 himself. At one time, PW.1 deposed that he has given Rs.5,00,000/- two times to the accused and Rs.5,00,000/- to the Nanjappa. On contrary to this, at another time deposes that he has given Rs.15,00,000/- to the Nanjappa father of the accused. Further at one time, PW.1 contends that he has intended to purchase the property from the father of the accused and he has made an agreement of sell with the father of the accused and lent Rs.15,00,000/- as a sale consideration amount. On the contrary to the same, PW.1 in his evidence, himself deposed that he has given the amount to the accused by mortgaging the property. Though PW.1 contended that accused has given the property on lease to the PW.1 but, no documents has been produced by him either to show that there was no

lease agreement or agreement of sell as such, the case of the complainant appears to be more doubtful.

24. Apart from this it is pertinent to note here that contrary to his version, PW.1 has taken the different contention that in the cross-examination of DW.1 in para No.5, he is stated that □

Thus, for the first time before the court that too in the cross-examination of the DW.1, complainant has come up with this new different story and contended that there was a family dispute between the accused and his wife and for that reason, accused has borrowed the amount from the PW.1 to release the gold ornaments of his wife pledged in Manapuram Gold Finances and at that time, accused and his father has executed the agreement and in support of his contention, PW.1 has produced Ex.P.11 to 18 documents relating to the Manapuram Finance Ltd. And also produced Ex.P.19 and 20 notice given by the wife of the accused through her counsel and reply given by the accused through his counsel. But, however PW.1 has not produced the agreement alleged to be executed at the time of lending the loan.

25. If at all for the sake of arguments, the version of PW.1 is believed as gospel truth, why PW.1 has not stated about this fact earlier either in his notice or complaint or in his chief-examination affidavit. There is no reason, explanation given by him. PW.1 for the first time before this court that too in the cross-examination of the DW.1 has come up with this new contention. Therefore, it appears that PW.1 is suppressing some material facts and has not approached this court with clean hands. Even there are lot of contradictions in the evidence of the PW.1 himself with regarding to the reason and the purpose why he has lend the loan.

26. Apart from this PW.1 contended that he has withdrawn the amount of Rs.15,00,000/□from the Kaveri Gramina Bank and lent the same to the accused and his father. There is no explanation forthcoming from the PW.1 as to why he has paid the amount in cash and what prevented him to transfer the amount either through bank or through cheque. Apart from this PW.1 has not produced his bank passbook to prove the same. All these facts and circumstances, creates doubt about the case of the complainant.

27. On the other hand, accused has taken the specific defence that he was never in need of any money and never borrowed any amount and he has never issued cheque in question for discharge of any legal recoverable debt to the PW.1. Our family is financially sound and there was no necessity to sell any of our properties situated at Dodderi Village to the complainant. We have never taken any amount from the complainant. Accused and his father, have not entered into any sale agreement with the complainant herein and accused has not issued the above referred cheque to him.

28. According to the accused, complainant has purchased the two-wheeler bearing No.KA-05-GK-4475 for the sum of Rs.45,000/□in the year 2017 and he has even signed and handed-over the related documents with regard to the transfer of the vehicle.. He had also handed over the possession of the said vehicle to the complainant and still the vehicle is in the possession of the complainant till date. Further contended that after selling of my vehicle, he found that, the cheque

book containing few cheque leaves including the above referred cheque was lost. He had submitted a letter to the branch manager, Karnataka Bank Ltd., Jayanagar 9 th Block branch, Bengaluru on 13.06.2018, informing about the same and had requested the bank to stop the payment of the cheques that were referred in the said letter including the alleged cheque bearing No.172138. The letter which was acknowledged by the bank is produced herewith.

29. Further submits that the complainant has not transferred the ownership in the RTO, with a sole intention to harass him and he had registered a complaint before the Puttenahalli police station on 25.03.2021 and police had called the complainant and warned him to change the RC of the vehicle. The complainant is herewith produced. Even after the filing of the complaint against the complainant, he has still not transferred the vehicle in his name and found to be intentionally violating the traffic rules with a sole intention to harass me. Accused has been getting notices from the traffic police for violations of the rules and he checked the traffic violations through 'traffic fine checker' which is an app and found that, the complainant and his son have been driving the said vehicle and found to be violating the traffic norms. He has obtained the photos from the said app and same are produced herewith.

30. With regard to the defence taken by the accused and in the line of the arguments canvassed by the counsel for the accused if documents and materials on records are perused, Ex.P.1 cheque dated 25.10.2019 and admittedly as per Ex.P.22 stop payment notice has been given by the accused to his bank on 13.06.2018 itself as cheque in question had lost. Thus, it clearly appears that accused has given the stop payment notice to his bank at an undisputed time on 13.06.2018 itself when he found his cheques lost including the cheque in question. When the accused has given the stop payment notice on 13.06.2018 itself, how is it possible for the accused to issue the same cheques to the complainant in the year 2019. Even it is not the case of the complainant that accused has issued the cheque before 13.06.2018. All these facts creates a doubt about the case of the complainant.

31. Even accused has produced Ex.D.15 Complaint lodged by him against the complainant for not registering R.C. of the vehicle in his name. Even accused has produced Ex.D.16 to D.21 notices issued by the police with regard to the violation of the traffic rules along with the photos, time, place and type of violation of the traffic rules. On perusal of Ex.D.16 to D.21, they show that the vehicle number involved in the violation of the traffic rules is KA05JK4475, which accused alleged to have sold to the PW.1. Further Ex.D.16 to D.21 reveals that on various dates and various places, said vehicle has been used and violated the traffic rules. It is pertinent to note here that though counsel for the PW.1 has objected for marking of Ex.D.16 to 21 as they are digitalized copies but, accused has produced Ex.D.22 Certificate U/Sec.65B of the Evidence Act to prove Ex.D.16 to 21. But, PW.1 has not denied Ex.D.16 to 21 documents in the cross examination of the DW.1 atleast by way of putting single suggestion. When any fact is not denied and disputed by the adverse party, it can be inferred that said fact is deemed to be admitted. Thus, it can be inferred that accused has sold the vehicle to the PW.1 and PW.1 is using the said vehicle without registering into his name even after purchasing the same from the accused. Moreover, it is also clearly shows that notice has been issued to the accused for violation of the traffic rules by the PW.1.

32. Further, accused has taken the specific defence that signature in Ex.P.1 cheque is not his signature. He found that the cheque books containing few cheque leaves including Ex.P.1 cheque has been lost and PW.1 has misused one of the said Ex.P.1 cheque, which was lost and misused by filling in the contents and also signature and filed this false case. In this regard PW.1 got examined the Assistant Bank Manager as PW.2 and also produced the specimen signature card as per Ex.P.21. Mere producing Ex.P.21 specimen card, it will not prove that signature in Ex.P.1(a) is the signature of the accused. no where pw2 deposed that he has verified the singatures in exp1a and specimen card and both signatures tallies or differs.

33. Further, accused has taken the specific defence that PW.1 was doing money lending business without any license and as such, complainant cannot claim the cheque amount as it does not amounts to the legally recoverable debt. In this regard accused cross examined PW.1 at length wherein, PW.1 was confronted with complaint filed by the PW.1 against one Renuka in C.C.26608/2019 and also order sheet in the said case, certified copy of cheque, notice and deposition, which was admitted by the PW.1 and got marked as Ex.D.1 to D.5. Similarly, PW.1 was confronted with the certified copy of complaint, order sheet, evidence deposition, certified copy of cheque and notice in C.C.No.2462/2019 filed against one S.Murugesh under Sec.138 of the N.I. Act and it was admitted by the PW.1, and got marked as Ex.D.6 to D.10. Further, PW.1 admitted that he has filed cheque bounce case against Renuka in the year 2019 for a sum of Rs.6,50,000/□ and against one Murugesh for a sum of Rs.7,50,000/□ and against accused in the present case for a sum of Rs.15,00,000/□ in the year 2018.

34. Further, when PW.1 was suggested that he has not produced any document to show that he was in possession of Rs.23,50,000/□ in total in the year 2018, PW.1 undertaken that he will produce the documents to show that he was in possession of Rs.23,50,000/□ in the year 2018. Accused specifically denied the financial capacity of the PW.1 to lend the amount of Rs.23,50,000/□ in total and specifically Rs.15,00,000/□ to the accused and his father in the present case in the year 2018. Though PW.1 undertaken that he will produce the documents to show his financial capacity, but has not produced any single document to prove that he was in possession of Rs.23,50,000/□ in total and atleast he was in possession of Rs.15,00,000/□ in the year 2018 either by producing any single document and as such, an adverse inference can be drawn against the PW.1 for non production of the vital and material document with regard to his financial capacity. Thus, in view of the above said facts and circumstances and discussions, an adverse inference can be drawn against the complainant for non production of the vital documents with regard to his financial capacity, with regard to the transaction alleged to be lend under the agreement and cancellation of the said agreement and also with regard to the passing of the consideration. Thus, complainant has failed to establish his case .

Conclusion

35. In view of all the above discussion, it can be concluded that the complainant has failed to establish through cogent and convincing evidence, the fact of issuance of the cheque for discharge of legally enforceable debt or any liability, which is dishonored for want of sufficient funds. On the other hand, the accused has successfully rebutted the presumption available to the complainant

through probable evidences, that would preponderate upon the evidence led by the complainant. Therefore, the accused is held to have not committed an offence punishable under sec. 138 of N.I. Act. Accordingly, point No.1 is answered in the NEGATIVE.

36. POINT NO.2: In view of my answer to point No.1, I proceed to pass the following: **O R D E R** : Acting under Section 278(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023, accused is acquitted for the offence punishable under Section 138 of NI Act.

The bail and surety bond of the
accused and surety shall stand
canceled.

(Dictated to the Stenographer, transcribed and computerized by her. Script corrected, signed and then pronounced by me in open Court this the 5 th day of August, 2024).

(CHETANA S.F.) IV Addl., Small Cause Judge & ACJM, Court of Small Causes, Bengaluru.

ANNEXURE List of witnesses examined for the Complainant:

P.W1 :- H.B.Ranganath
P.W2 :- Nagaraj Udupa

List of witnesses examined for the accused: DW.1 : Kiran D.N. List of documents marked for the Complainant: Ex.P.1 : Cheque Ex.P.1(a) : Signature of accused Ex.P.2 : Bank Endorsement Ex.P.3 : Legal Notice Ex.P.4 to 6 : Postal Receipts Ex.P.7 : Postal acknowledgement Ex.P.8 & 9 : 2 Postal covers Ex.P.10 : Reply to the legal notice Ex.P.11 and 12 : Statement of account Ex.P.13 to 18 : Jewellery pledge receipt Ex.P.19 : Legal notice Ex.P.20 : Reply to Legal notice Ex.P.21 : Karnataka bank signature card Ex.P.22 : Letter written from accused to Karnataka bank Ex.P.23 : Bank statement List of documents marked for the accused: Ex.D1 : Ordersheet in P.C.R.No.11488/2019 Ex.D2 : Complaint copy in CC No.26608/2019 Ex.D3 : Sworn statement Ex.D4 : Copy of cheque & return memo Ex.D5 : Copy of legal notice Ex.D6 : Copy of ordersheet in P.C.R.No. 2026/2019 Ex.D7 : Complaint copy in CC No.2462/2019 Ex.D8 : Sworn statement Ex.D9 : Copy of cheque & return memo Ex.D10 : Copy of legal notice Ex.D11 : Complaint copy Ex.D12 : Letter written by accused to complainant Ex.D13 : Postal acknowledgement Ex.D14 : Requisition to bank Ex.D15 : Acknowledgement of Puttenahalli P.S. Ex.D16 to 21 : Photos Ex.D22 : Certificate u/s.65B of the Evidence Act Ex.D23 : Receipt (CHETANA S.F.) IV Addl., Small Cause Judge & ACJM, Court of Small Causes, Bengaluru.